

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an Appeal in terms of
Article 138(1) of the Constitution read
with Section 11(1) of the High Court of the
Provinces (Special Provisions) Act No. 19
of 1990 read with Section 331 of the Code
of Criminal Procedure Act No. 15 of 1979**

The Officer in Charge,
Police Station,
Embilipitiya

Complainant

Court of Appeal Case No:

CA/(PHC)0005/2024

High Court of Embilipitya

Case No. HCE/RA/19/2022

Vs,

Magistrates Court of Embilipitiya

Case No. 54744/18

Hiripurage Chithralatha,
Kumara Timber Mill, 99,
Gangeyaya, Embilipitiya

Applicant

And Between

Hiripurage Chithralatha,
Kumara Timber Mill, 99,
Gangeyaya, Embilipitiya

Applicant-Petitioner

Vs,

01. The Officer in Charge,
Police Station,
Embilipitiya

Complainant-Respondent

02. Hon. Attorney General,
Attorney General's Department,
Colombo 12

Respondent

And Now Between

Hiripurage Chithralatha,
Kumara Timber Mill, 99,
Gangeyaya, Embilipitiya

Applicant-Petitioner-Appellant

Vs,

01. The Officer in Charge,
Police Station,
Embilipitiya

Complainant-Respondent-Respondent

02. Hon. Attorney General,
Attorney General's Department,
Colombo 12

Respondent-Respondent

Before: **Amal Ranaraja, J.**

Dr. Sumudu Premachandra, J.

Counsel: Randunu Heellage with Pravindika Kularathna for the
Petitioner

Wishwa Wijesuriya, SC for the Respondent

Argued on: 02.09.2026

Judgment on: 21.09.2026

Judgment

Amal Ranaraja. J.

1. On May 20th, 2018, officers of the *Embilipitiya* Police Station have arrested persons named, *Hiripurage Kumaradasa* and *Nawamuni Arachchige Chathuranga* for transporting Teak timber logs valued Rs. 45,971.24 without the valid permit. This has occurred in a vehicle bearing Registration Number 42ඉ 0836
2. Thereafter, the officer in charge of the *Embilipitya* police has instituted proceedings in the *Embilipitya* Magistrates Court, against the persons referred to above for illegally transporting Teak timber logs, an offence punishable under Section 24(1) read with Sections 25(2) and 40 of the Forest Ordinance No.16 of 1907 (as Amended). The accused upon pleading guilty to the charge have been convicted of the charge and sentenced.

3. Subsequently, a confiscation inquiry has been held regarding the vehicle bearing Registration No. 42⁹ 0836. By order dated November 14th, 2022, the learned Magistrate has ordered the confiscation of the said vehicle. Aggrieved by the order, the registered owner petitioner-appellant (hereinafter referred to as the appellant) has filed an application in revision (RA/19/22) in the High Court of *Embilipitya*.
4. The learned High Court Judge by the order dated November 28th, 2023, has dismissed the revision application and affirmed the order of the learned Magistrate. The appellant also being aggrieved by the order of the learned High Court Judge of *Embilipitya*, dated November 28th, 2023, has preferred the instant appeal to this Court.
5. It is common ground, that the officer in charge at the *Embilipitiya* police has instituted proceedings against, *Hiripurage Kumaradasa* and *Nawamuni Arachchige Chathuranga* for illegally transporting Teak timber logs valued at Rs. 45,971.24 on May 20th, 2018, thereby committing an offence punishable under Section 24(1) read with Sections 25(2) and 40 of the Forest Ordinance No.16 of 1907 (as Amended).
6. Section 40 of the Forest Ordinance No.16 of 1907 (as Amended) provides as follows;

40.

(1) Where any person is convicted of a forest offence-

(a) all timber or forest produce which is not the property of the State in respect of which such offence has been committed; and

(b) all tools, vehicles, implements, cattle and machines used in committing such offence,

shall in addition to any other punishment specified for such offence, be confiscated by Order of the convicting Magistrate:

Provided that in any case where the owner of such tools, vehicles, implements and machines used in the commission of such offence, is a third party, no Order of Confiscation shall be made if such owner proves to the satisfaction of the Court that he had taken all precautions to prevent the use of such tools, vehicles, implements, cattle and machines, as the case may be, for the commission of the offence.'

(2) Any property forfeited to the State under subsection (1) shall

(a) if no appeal has been preferred to the Court of Appeal against the relevant conviction, vest absolutely in the State with effect from the date on which the period prescribed for preferring an appeal against such conviction expires;

(b) if an appeal has been preferred to the Court of Appeal against the relevant conviction, vest absolutely in the State with effect from the date on which such conviction is affirmed on appeal.

In this subsection, 'relevant conviction' means the conviction in consequence of which any property is forfeited to the State under subsection (1).'

7. Section 40 of the Forest Ordinance, states that upon a conviction, all timber and forest produce that have been the subject matter of the offence, and vehicles used for the commission of such offence, would be confiscated. If the owner of the vehicle himself was the accused in

the preceding case, then the issue before the Court in a confiscation inquiry will not be complicated. However, if the owner is a third party, it would be necessary for a Court to ascertain whether the offence was committed by a particular accused with the knowledge and the connivance of the owner of the vehicle used for the commission of the forest offence.

8. The owner of the vehicle must establish on a balance of probability, that he took all precautions to prevent the vehicle from being used in the commission of a forest offence. The specific precautions deemed relevant will vary from case to case; there are no universal measures that all vehicle owners must follow. It is crucial that the precautions taken are convincing and clearly demonstrate the owner's diligence. Any actions that suggest a lack of sincerity or responsibility, may undermine the owner's position.
9. Further, in an inquiry in the nature of the one in question, the owner of a vehicle is considered to be the person who has control over the vehicle in issue.
10. In *Oriental Finance Services Corporation Ltd vs Range Forest Officer and Another* [2011] 1 SLR 86, Sisira de Abrew, J, has stated,

"Who is the owner of the vehicle? This is the most important question that must be decided in this case. Can it be said that the absolute owner (the finance company) committed the offence or it was committed with the knowledge or participation of the absolute owner. The answer is obviously no. Surely a finance company cannot participate in the commission of an offence of this nature when the vehicle is not with it. It cannot be said that the finance company had the knowledge of the commission of the offence when the vehicle was not with it. The owner envisaged in the law cannot be the absolute owner."

In the present case the registered owner is the one who drove the vehicle at the time of the commission of the offence. He was convicted on his own plea. If the court is going to release the vehicle on the basis that the owner of the vehicle is the absolute owner, then after the release, it is possible for the absolute owner to give the vehicle to another person. If this person commits a similar offence, the finance company can take up the same position, and the vehicle would be again released. Then where is the end to the commission of the offence? Where is the end of the violation of the Forest Ordinance? There will be no end. If the courts of this country take up this attitude the purpose of the legislature in enacting the said provisions of the Forest Ordinance would be defeated. In my view Courts should not interpret the law to give an absurd meaning to the law.

In this connection I would like to consider a passage from 'Interpretation of Statutes by Bindra 7th edition page 235.' It is a well-known rule of construction that a statute should not be construed so as to impute absurdity to the legislature."

For these reasons I hold that the owner envisaged in law is not the absolute owner and the owner envisaged in law in a case of this nature is the person who has control over the use of the vehicle. The absolute owner has no control over the use of the vehicle except to retake the possession of the vehicle for non-payment of instalments.

If the vehicle is confiscated holding that the absolute owner is not the owner envisaged in law, no injustice would be caused to him as he could recover the amount he spent from the registered owner by way of action in the District Court on the basis of violation of the agreement."

11. The appellant being the registered owner of the vehicle bearing Registration No. 42५ 0836 has maintained that she inspected the vehicle at all times to ensure that it was not being used for illegal purposes.
12. The appellant has also maintained that the vehicle in question was fitted with a crane and was primarily used to move logs delivered to a timber mill. Although the vehicle was mostly stationary, it was occasionally employed to transport sawdust and the fine wood chips produced during timber cutting and shaping. On the occasion at issue, the vehicle had been taken to another well-known timber mill to be loaded with sawdust, the vehicle was parked at such location, locked and her son had brought the keys home that evening. The next morning the appellant had apparently gone to the spot where the vehicle had been parked overnight to ensure that nothing illegal had been placed in/on it.
13. However, in his testimony the appellant's son has stated that the vehicle in issue had been taken into police custody on the same night when it was parked at the other timber mill for loading purposes.
14. In those circumstances, the appellant would not have had an opportunity to inspect the vehicle next morning to ascertain that no illegal items had been placed in/on the vehicle and ensure that it was not being used for illegal purposes. The appellant has offered no explanation for this material discrepancy, which reveals inconsistencies in her account and given Court grounds reject her narrative.
15. Given these circumstances, both the learned Magistrate and the learned High Court Judge have correctly determined that the appellant

has failed to establish, on a balance of probability, the legal requirement specified in the proviso of Section 40 of the Forest Ordinance No. 16 of 1907.

16. Accordingly, I am not inclined to interfere with the disputed orders of the learned Magistrate and the learned High Court Judge dated, November 14th, 2022, and November 28th, 2023, respectively.

17. I hereby dismiss the appeal and make no order regarding costs.

Appeal dismissed

18. The Registrar of this Court is directed to send this Judgement to the Magistrate's Court in *Embilipitya* for information and compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal